STATE OF ILLINOIS
CONTRACT AMENDMENT

The undersigned Agency and Vendor, Deloitte Consulting, LLP (the Parties) agree that the following shall amend the Contract referenced herein. All terms and conditions set forth in the original Contract, not amended herein, shall remain in full force and effect as written. In the event of conflict, the terms of this Amendment shall prevail.

IN WITNESS WHEREOF, the Agency and the Vendor cause this Amendment to be executed on the dates shown below by representatives authorized to bind the respective PARTIES.

VENDOR

Vendor Name: Deloitte Consulting LLP	Address: 111 S. Wacker Chicago, IL 60606
Signature:	Phone: 312-486-4483
Printed Name: Allan Kagan	Fax: 312-247-4483
Title: Principal	Email: akagan@deloitte.com
Date: July 30, 2021	

STATE OF ILLINOIS

Procuring Agency: Department of Employment Security	Phone:
Street Address: 33 S. State Street	Fax:
City, State ZIP: Chicago, IL 60603	
Official Signature:	Date: 8/3/21
Printed Name: Kristin A. Richards	
Official's Title: Acting Director	
Legal Signature:	Date:
Legal Printed Name:	
Legal's Title:	
Fiscal Signature:	Date:
Fiscal's Printed Name:	
Fiscal's Title:	

STATE USE ONLY **NOT PART OF CONTRACTUAL PROVISIONS**

PBC# N/A Project Title uFACTS System (PUA System)

Contract # 4100127387 Procurement Method (IFB, RFP, Small, etc): Covid 19 Exempt

IPB Ref. # N/A IPB Publication Date: N/A Award Code: Z

Subcontractor Utilization? ☐ Yes ☐ No ☑ Subcontractor Disclosure? ☐ Yes ☐ No ☑

Funding Source Obligation # 4100127387

CPO 33 – General Counsel Approval:

Signature Printed Name Date

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1. **CONTRACT DESCRIPTION** (including Original Purchase Order or Contract Number): 4100127387 for the Unemployment Framework for Automated Claim & Tax Services (uFACTS) system.

2. **CHANGE ORDER**: Is this amendment a change order as defined in 30 ILCS 500/1-15.12 and 720 ILCS 5/33E?

☐ Yes ☒ No

3. **DESCRIPTION OF AMENDMENT** (Check all that apply, complete blanks and explain as necessary):

3.1. The completion date will be ☒ extended, ☐ shortened or ☐ remain the same.

3.1.1. Original completion date: 06/30/2021.

3.1.2. Revised completion date: 12/31/2021.

3.2. The method of determining compensation (e.g., hourly rate, fixed fee, etc.) will ☐ stay the same or ☒ change as listed in Section 3.4.1.

3.3. The cost will be ☒ increased, ☐ decreased or ☐ remain the same.

Cost History:	
Original cost:	$9,490,000.00
1st Amendment/Increase:	$325,000.00
2ND Amendment/Increase:	$4,550,000.00
3rd Amendment	No cost increase
4th Amendment/Increase:	$6,377,000.00
Revised Total:	$20,742,000.00

3.3.1. Amount of change: $6,377,000.00 for the services identified in Section 3.4.1 of this Amendment.

3.3.2. Revised cost: $20,742,000.00

3.4. The supplies or services to be provided will ☐ stay the same or ☒ be changed as follows:

3.4.1. **Hypercare Support– June 1 – December 31, 2021**

From June 1, 2021 through December 31, 2021, as a result of the continuation of active PUA, significant changes in the handling PUA overpayment processing, and hosting expenses that are higher than agreed last December due to the continuation of the program resulting in a higher than anticipated number of claims and transactions, the Vendor shall provide Hypercare support services as established in the Contract including the Statement of Work. Further, Hypercare support services shall cover the following:

1. Application monitoring, defect fixes (material nonconformities to the approved requirements) and ongoing project management.

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2. System enhancements (changes to the approved requirements) will be subject to a standard change request and approval process and incorporated based upon the capacity of the Maintenance and Operations team.
3. A minimum 22 FTE resources.
4. Includes AWS hosting, and 25 Datacap licenses.
5. Due to a higher level of AWS hosting and the higher FTE number the monthly cost will increase to $967,000.00.

Experian Identity Match

Beginning July 1, 2021, Experian Address Validation/Identity match will be invoiced separately. Vendor will invoice IDES, each month, on a per Experian transaction basis, at $0.38 per Experian transaction. This is estimated to cost $175,000.00.

Business User Internal Control Matrix

There is a one time payment for Deloitte assistance in creating a Business User Internal Control Matrix and related documentation. This was agreed as part of audit remediation steps taken by the department. $150,000 to be paid on completion of the deliverable.

SOC 1 Report

Vendor shall secure an Independent Audit company to produce a SOC1, type 2 report for the PUA hosted application covering the period of July 1 through December 31. Vendor will obtain IDES approval before executing the contract and cost will be paid on a pass-through basis. This is estimated to cost $250,000.00.

3.5 Subcontractors are being ☐ added, ☐ deleted, or ☒ remain the same?

- Subcontractor Name: Click here to enter text.

  ☐ added ☐ deleted

  Amount to be paid: Click here to enter text.

  Address: Click here to enter text.

  Description of work: Click here to enter text.

- Subcontractor Name: Click here to enter text.

  ☐ added ☐ deleted

  Amount to be paid: Click here to enter text.

  Address: Click here to enter text.

Description of work: Click here to enter text.

3.5.1. All contracts with the subcontractors identified above must include the Standard Certifications and Financial Disclosures and Conflicts of Interest completed and signed by the subcontractor.

3.5.2. If the annual value of any of the subcontracts is more than $50,000, then the Vendor must provide to the State the Financial Disclosures and Conflicts of Interest for that subcontractor.

3.5.3. If the subcontractor is registered in the Illinois Procurement Gateway (IPG) and the Vendor is using the subcontractor's Standard Certifications or Financial Disclosures and Conflicts of Interest from the IPG, then the Vendor must also provide a completed Forms B for the subcontractor.

3.5.4. If at any time during the term of the Contract, Vendor adds or changes any subcontractors, Vendor will be required to promptly notify, in writing, the State Purchasing Officer or the Chief Procurement Officer of the names and addresses and the expected amount of money that each new or replaced subcontractor will receive pursuant to the Contract. Any subcontracts entered into prior to award of the Contract are done at the Vendor's and subcontractor's risk.

4. EFFECTIVE DATE OF AMENDMENT: Upon the last dated signature of the Parties.

STATE OF ILLINOIS
TAXPAYER IDENTIFICATION NUMBER

I certify that:

The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and

I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and

I am a U.S. person (including a U.S. resident alien).

- If you are an individual, enter your name and SSN as it appears on your Social Security Card.
- If you are a sole proprietor, enter the owner's name on the name line followed by the name of the business and the owner's SSN or EIN.
- If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's name on the name line and the D/B/A on the business name line and enter the owner's SSN or EIN.
- If the LLC is a corporation or partnership, enter the entity's business name and EIN and for corporations, attach IRS acceptance letter (CP261 or CP277).
- For all other entities, enter the name of the entity as used to apply for the entity's EIN and the EIN.

Name: Allan Kagan

Business Name: Deloitte Consulting LLP

Taxpayer Identification Number:

Social Security Number: Click here to enter text.

or

Employer Identification Number : 06-1454513

Legal Status (check one):

☐ Individual	☐ Governmental
☐ Sole Proprietor	☐ Nonresident alien
☐ Partnership	☐ Estate or trust
☐ Legal Services Corporation	☐ Pharmacy (Non-Corp.)
☐ Tax-exempt	☐ Pharmacy/Funeral Home/Cemetery (Corp.)
☐ Corporation providing or billing medical and/or health care services	☒ Limited Liability Company (select applicable tax classification)
☐ Corporation NOT providing or billing medical and/or health care services	☐ C = corporation ☒ P = partnership

Signature of Authorized Representative: _____

Date: July 30, 2021